

Dispute Chamber

Decision 164/2023 of December 5, 2023

File number: DOS-2023-03280

Subject: settlement decision regarding a complaint about the use of cookies by Flemish Radio and Television Broadcasting Organization (website “VRT”)

The Dispute Chamber of the Data Protection Authority, composed of Mr.

Hielke HIJMANS, sole presiding chairman;

Considering Regulation (EU) 2016/679 of the European Parliament and the Council of April 27, 2016 on the protection of natural persons with regard to the processing of

personal data and on the free movement of such data and repealing

Directive 95/46/EC (General Data Protection Regulation), hereinafter “GDPR”;

Considering the law of December 3, 2017 establishing the Data Protection Authority, hereinafter “WOG”;

Considering the internal rules of procedure, as approved by the Chamber of Representatives on December 20, 2018 and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

Complainant:

Mr. X, residing at [...], represented by NOYB – European Center for Digital Rights, with registered office at [...], hereinafter “the complainant”, and

Settling party: The

Flemish

Radio

and

Television Broadcasting Organization

(VRT),

public limited company with registered office at [...], represented by Mr. Jan CLINCK and Mr.

Gerrit VANDENDRIESSCHE, both practicing at [...]; hereinafter “the

settling party”.

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I. Procedure prior to the settlement

I.1.

The complaint

1.

On July 19, 2023, the complainant, through his representative, filed a complaint with the Data Protection Authority (“GBA”) against the settling party.¹

2.

The subject of the complaint concerns elements related to the placing of cookies on the website. The complaint refers to the legislation relevant to the complainant regarding the granting of consent.² The complaint links to “misleading cookie banners and ‘dark patterns’”. The complaint also refers to reports and communications from both the European Data Protection Committee and the Belgian GBA related to the obligations when placing cookies that involve the processing of personal data.

3.

Specifically, the complaint raises one alleged practice that is detrimental to him on the aforementioned website. This grievance is formulated as follows: “No ‘refuse’ option at the first level of information of the cookie banner.”

4.

On August 3, 2023, the First-Line Service of the GBA contacts the complainant to request information “about the complainant’s interest in filing the complaint.”

5.

On August 24, 2023, the complaint is declared admissible by the First-Line Service based on Articles 58 and 60 of the WOG3 and is forwarded to the Dispute Chamber based on Article 62, § 1 of the WOG.⁴

6.

On September 1, 2023, the representative of the complainant submits a document to the First-Line Service that further explains the complainant's interest.

7.

In the document of September 1, 2023, the representative of the complainant refers to the admissibility conditions in the WOG – which the complaint meets – and states that it is “not clear to [the representative] why the First-Line Service of your authority requests further substantiation of the complainant's interest in filing the complaint.” The representative points out that the complainant's data was indeed processed, and that the complainant qualifies as a data subject in the sense of the GDPR,

1 During the procedure, it was sometimes mentioned that the complaint was filed on July 18, 2023, as stated in the complaint itself by the complainant, but formally the complaint only reached the GBA the next day.

2 Namely Article 10/2 of the Law of July 30, 2018 regarding the protection of natural persons with respect to the processing of personal data, B.S. 05/09/2018 (as implementation of provisions from the “e-Privacy Directive”) and Article

6.1.a. GDPR.

3 In accordance with Article 61 of the WOG, the Dispute Chamber hereby informs the parties that the complaint has been declared admissible.

4 In accordance with Article 95, § 2 of the WOG, the Dispute Chamber hereby informs the parties that the file has been transferred to it following this complaint.

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and further states: “The complaint does not solely pursue a public interest consisting of the protection of every individual who visits the website.”

8.

The Dispute Chamber does not further investigate the aspects regarding the interest of the complainant, which have already been addressed in the communications between the representative of the complainant and the First-Line Service, for the sake of an efficient process.

I.2. The settlement proposal and procedural requests from the settling party

9.

On September 21, 2023, the Dispute Chamber sends a letter to both the representative of the complainant and the settling party, in which the Dispute Chamber communicates to the involved parties that it intends to proceed with a settlement proposal in the case, based on Article 95, § 1, 2° WOG. The notification also mentions that the Dispute Chamber considers the deadline for the Inspection Service under Article 96, § 1 WOG to be suspended due to this communication. The parties may, if they wish, also review the administrative file from this moment, which they both subsequently request.

10.

On September 28, 2023, prior to sending the settlement proposal, the settling party sends a letter to the Dispute Chamber requesting certain email correspondence between the representative of the complainant and the First-Line Service to be provided. The correspondence is not part of the administrative file, nor of the inventory, but is referenced in the aforementioned letter from the representative of the complainant dated September 1, 2023.

11.

On October 2, 2023, the settling party then sends a letter to the Dispute Chamber and the

complainant, explaining that the screenshot of the settling party's website included in the complaint "does not reflect the current situation," as the "current cookie banner" does provide for an "all reject" button. The settling party attaches the following screenshot:

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12.

Through its letter of October 2, 2023, the settling party therefore requests the dismissal of the complaint, as the settling party "believes that the cookie banner on its website <https://vrt.be/nl>" currently fully complies with the requests of the complainant. Furthermore, the current banner is in line with the EDPB report of the so-called Cookie Banner Taskforce[...] and the communication of February 10, 2023, which followed this EDPB Report[...]. And further: "Since [the settling party] already in tempore non suspecto and in good faith, after clarification by the EDPB and GBA, decided to place the all reject button at the first level, it believes that the complaint has become unfounded or at least without object and that a dismissal is warranted (Article 95, §1, 3° WOG)."

13.

On October 3, 2023, the Dispute Chamber responds as follows to the two aforementioned messages from the settling party:

"Firstly, regarding the message of September 28 concerning emails referenced by the complainant in the present file. It is true that the representative of the complainant has disclosed communications related to this file in an email exchange that pertains to another file.

Since it is not the role of the Dispute Chamber to disclose information belonging to another file, either wholly or partially, to a third party, this information does not belong to the administrative file in the present complaint against [the settling party]. The documents mentioned by the representative do not, in the view of the Dispute Chamber, belong to the aforementioned file, and these documents will therefore not be taken into account for the further course of the procedure.

Secondly, regarding your letter dated October 2, 2023, from which the Dispute Chamber prima facie and merely summarily concludes that your client believes that the complaint has "become unfounded or at least without object and that a dismissal is warranted" since the screenshot attached to the complaint by the complainant, according to [the settling party], "does not reflect the current situation." The Dispute Chamber acknowledges the letter and its content, and it is fully added to the file. The Dispute Chamber does not give any specific procedural follow-up to your communication at this moment, but wishes to inform you of its good receipt."

14.

On October 20, 2023, the settlement proposal is sent to the settling party and to the complainant. The content of this settlement proposal is unchanged and is reiterated in the

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Appendix to this settlement decision, and forms an integral part thereof.⁵ This settlement proposal specifically includes all procedural and substantive conditions, as well as the deadlines within which the parties are to respond respectively. It should be noted that the condition included in the settlement proposal does not constitute the actual settlement condition, as a prevailing condition is included in the present settlement decision (see section II of this settlement decision).

15. On November 3, 2023, the settling party communicates to the Dispute Chamber, indicating that it believes the email messages referred to by the representative of the complainant in her message dated September 1, 2023, should be part of the administrative file. The settling party elaborates on this position.

16. On November 7, 2023, the Dispute Chamber responds as follows: "The Dispute Chamber previously indicated that the four other mentioned messages do not belong to this administrative file. Consequently, no account will be taken of a document that does not belong to the administrative file."

I.3. The complainant's response

17. On October 30, 2023, the representative of the complainant submits a letter to the Dispute Chamber. On November 3, 2023, the representative of the complainant also submits the letter to the settling party, as it was unclear to the representative that she also needed to provide the document to

the settling party.

18. In her response to the settlement proposal, the complainant requests clarification and/or adjustments on several “points.” The complainant concludes with the following paragraph: “The complainant points out that if the content of the settlement proposal is modified in favor of the defendant [settling party] and/or if the above requests are not (fully) met, the complainant feels compelled to appeal against the final settlement decision.”

19. The Dispute Chamber reiterates – in light of a clear decision – the requests of the complainant under section II of this decision, after which the Dispute Chamber responds concretely to the requests.

20. The Dispute Chamber responds on November 6, 2023, that the settlement proposal will not be amended in accordance with the requests of the complainant. The Dispute Chamber does indicate that it intends to publish the decision without omitting the identifying details of the settling party in accordance with Art. 95, §1, 8° WOG.

I.4. The requests of the settling party and the establishment of the settlement

Letter from the settling party dated November 20, 2023

21. On November 20, 2023, the settling party submits a response regarding the settlement proposal.

22. Given the requests for clarification from the settling party, the Dispute Chamber grants an extension of seven days on November 21, 2023, extending the deadline set under section d) of the settlement proposal.

23. In its letter dated November 20, 2023, the settling party first states that the settlement proposal from the Dispute Chamber exceeds its jurisdiction, as the grievance formulated in the complaint relates to the absence of an “opt-out” button – a button that, according to previous communications from the settling party, has already been implemented in the file.

24. Subsidiarily, the settling party states in the letter of November 20, 2023, that the substantive condition of the settlement proposal is “without object,” according to the settling party “since the way in which [settling party] today proposes the ‘opt-out’ button is no less visually appealing than the way the other buttons are displayed [...]” The settling party then proceeds to propose a rephrasing of the text of the settlement condition in that sense, along with several other requests for clarification.

25. The letter of November 20, 2023, from the settling party finally states that the second paragraph under section f) of the settlement proposal should be removed for various reasons. The settling party also points out the erroneous mention “(in this case this does not concern a complaint file)” in the same paragraph.

Response from the Dispute Chamber dated November 24, 2023

26. On November 24, 2023, the Dispute Chamber responds as follows. Regarding the assertion that the settlement proposal would exceed the jurisdiction (of the complaint) in this file, the Dispute Chamber responds that in the case of settlements, it can take into account other elements present in the administrative file (including documents – in good faith – submitted by the settling party itself). The Dispute Chamber mentions that the settling party is also free to refuse the settlement proposal if it considers the proposal unacceptable on this point.

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27.

In the same message dated November 24, 2023, the Dispute Chamber also responds that it does not consider the situation with a white background for the “reject all” button to be equivalent to that with a dark blue background for the “accept all” button. The Dispute Chamber subsequently states in the message: “The judgment would, for example, be different if both buttons had a white background, or if both buttons had a dark blue background. Furthermore, it can be stated that the wording from the settlement proposal follows from the fact that such choices for granting consent for the placement of cookies do not necessarily need to be equal, but must be presented as essentially equivalent.”

28.

As a third point, the Dispute Chamber addresses the textual requests of the settling party in the message dated November 24, 2023. It can comply with most of the requests from the settling party, except for the request to remove the implementation modalities from the condition, as in the view of the Dispute Chamber, the settlement condition necessitates an intervention by the defending party. Implementation modalities therefore seem appropriate in this case. The Dispute Chamber then

proposes the following wording:

The defendant commits to ensuring that on its website www.vrt.be, the option where a “reject all” option is hidden is not presented as less visually appealing than the partial or full acceptance for the placement of non-strictly necessary cookies, to the extent that the lesser visual appeal undermines the free nature of the consent of a data subject, and this within one month after the settlement decision. The technical adjustments made by the defendant for this purpose will be documented in a clear document at the time of implementation and forwarded to the Dispute Chamber and the complainant. Both the execution of the technical implementation and the preparation and forwarding of the document that reflects the implementation will be completed within one month after the settlement decision.

29. Additionally, the Dispute Chamber also addresses the request from the settling party to insert the following paragraph into the settlement proposal:

The Dispute Chamber does not consider agreeing to a settlement proposal as an admission, which could particularly be used as aggravating circumstances in determining the sanction for future proceedings before the Dispute Chamber.

This paragraph will be reinserted under section II.1 of the present settlement decision to avoid any confusion.

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30. The Dispute Chamber clarifies, finally, that it will not remove the second paragraph of section f) of the settlement proposal. The Dispute Chamber does acknowledge the material error regarding the mention “(in this case this does not concern a complaint file)” and confirms that it will add an erratum to the present decision (see below).

31. The Dispute Chamber clarifies that the settling party has until November 28, 2023, to respond to the settlement proposal – with the reformulated condition.

Further interaction with the settling party and establishment of settlement

32. On November 27, 2023, the settling party sends a message to the Dispute Chamber, referring to the position of the Dispute Chamber outlined above, and requests an extension of the deadline to respond to the settlement proposal “in any case no later than December 11, 2023.”

33. Also on November 27, 2023, the Dispute Chamber responds as follows: “The Dispute Chamber understands and acknowledges that there is a certain pressure on the parties during the settlement procedure [...] However, it must be emphasized that the one condition proposed to [the settling party] cannot be described as particularly technically complex.” The Dispute Chamber grants “one more” extension to the settling party, which has until December 1, 2023, to provide a final response.

34. On December 1, 2023, the settling party confirms that the settlement proposal with the condition included in the email from the Dispute Chamber dated November 24, 2023, is “acceptable” to it, while also providing a number of considerations regarding its legal position. On the same day, the Dispute Chamber confirms that a settlement has been formally established through the message from the settling party, which will lead to the present settlement decision.

II. Conditions of the settlement and reasoning for rejected requests

II.1. General considerations

35. During the settlement procedure, a number of proposals were made by the settling party regarding the one condition included in the settlement proposal. In the view of the Dispute Chamber, the fulfilled requests are at least acceptable clarifications, and possibly also improvements regarding the condition.

36. The Dispute Chamber clarifies in this regard, and without any ambiguity, that the text of the substantive condition formulated under section b.1.1. of the settlement proposal is fully withdrawn, and that the following text will fully replace it. Only up to

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the execution of the following condition binds the settling party. The agreed condition is as follows: The respondent commits to presenting the option where a “reject all” option is hidden on its website www.vrt.be no less visually appealing than the partial or full acceptance for placing non-strictly necessary cookies, to the extent that the lesser visual appeal compromises the free nature of the

consent of a data subject, and this within one month after the settlement decision.

The technical adjustments made by the respondent in this regard will be documented in a clear document at the time of implementation and forwarded to the Dispute Chamber and the complainant. Both the execution of the technical implementation and the preparation and forwarding of the document that reflects the implementation will be completed within one month after the settlement decision.

The Dispute Chamber considers agreeing to a settlement proposal not as an admission, which could particularly be used as aggravating circumstances in determining the sanction for future procedures before the Dispute Chamber.

37.

The Dispute Chamber clarifies that, in light of the adequate procedural course, the settlement procedure has been split into a settlement proposal on one hand, and a settlement decision on the other. This approach ensures that the procedural starting and ending points are clear for all parties involved, including the possibilities for appeal in these phases by the addition of the appeal clauses. The taking of a settlement decision also facilitates the transparency of the settlement procedure, as the Dispute Chamber unequivocally opts for such transparency.

38. Finally, the present decision is a *prima facie* decision made by the Dispute Chamber in accordance with Article 95 of the WOG based on the complaint submitted by the complainant, in the context of the “procedure prior to the decision on the merits” 6 and is not a decision on the merits of the Dispute Chamber in the sense of Article 100 of the WOG.

II.2. The rejected requests of the complainant

39. The complainant submitted several requests to the Dispute Chamber, which did not prompt the Dispute Chamber to amend the settlement proposal. The

6 Section 3, Subsection 2 of the WOG (Articles 94 to 97).

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Dispute Chamber will proceed with the publication of this settlement decision on the website of the Data Protection Authority (see section III of this decision), as also requested by the complainant, which constitutes a separate decision that stands apart from the settlement under Article 95, §1, 8° WOG.

40. The Dispute Chamber explains below why it does not address the other requests. It should be noted that the reasoning is included in the present decision, so that the motives clearly follow within the generally structured procedural economy.

41.

Firstly, regarding the first and only condition, the complainant requests “to add that the ‘no less (visually) appealing’ representation includes, but is not limited to, that both the ‘reject all’ option and the ‘agree and close’ option must have the same size, color, shape, contrast, and location of the button/option.”

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The Dispute Chamber rejects this request for the following reason. It is not up to the Dispute Chamber, nor the complainant, to determine that buttons must have (exactly) the same properties. This choice belongs to the data controller. It is true that buttons with exactly the same properties clearly stand equal for granting consent. A contrario, it is not excluded that the data controller opts to present the “reject all” option more attractively or innovates in the use of colors (which, for example, represent essentially equivalent options) that facilitate the data subject in making their choice. The more generally formulated condition in the settlement proposal regarding the “no less (visually) appealing” representation of the choices is therefore sufficient for the Dispute Chamber.

42.

Secondly, the complainant requests that the following condition be added:

“The respondent commits to developing and implementing, within a period of one month, a mechanism on the VRT website (www.vrt.be) that meets the requirements set out in the aforementioned policy documents and aims for an equivalent effect; furthermore, the respondent commits to ensuring that withdrawing consent does not involve more steps (in terms of “clicks”) than necessary for granting consent. On all pages of the website, a permanently visible and visually distinguishable option must be

available to reopen the cookie settings with one click. The same number of steps for withdrawing consent is counted from the moment the end user reopens the cookie settings. The technical adjustments made by the respondent in this regard will be documented in a clear document at the time of implementation and forwarded to the

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Dispute Chamber and the complainant. Both the technical implementation and the drafting and forwarding of the document that reflects the implementation will be completed within one month after the settlement decision.”

•

The Dispute Chamber fully rejects this request to amend the condition for the following reason. The Dispute Chamber acknowledges the complainant's view that they wish for a “permanently visible and visually distinguishable option” on all web pages of the disputed website. The Dispute Chamber, which aims to reach a reasonable and technically feasible settlement, considers that it is not appropriate to require such adjustments through a settlement.

43. Thirdly, the complainant requests that “an order to cease unlawful processing be added concerning the website,” which should read as follows:

“The respondent commits to deleting personal data that is processed due to cookies that are not placed on the VRT website (www.vrt.be) in accordance with the content of this settlement decision, and that the respondent communicates this obligation to delete to all recipients to whom the personal data has been provided in this context. Proof of this deletion of personal data and the communication of this obligation to delete personal data to all recipients will be documented in a clear document at the time of implementation and forwarded to the Dispute Chamber and the complainant. Both this deletion of personal data and the communication of this obligation to delete personal data to all recipients, as well as the forwarding of the document that reflects the implementation, will be completed within one month after the settlement decision.”

•

The Dispute Chamber rejects this request for the following reason. The complainant has not approached the data controller regarding the alleged violation of their rights based on the elements available in the administrative file. The Dispute Chamber therefore does not find it appropriate at this time to propose such a condition, let alone to issue an “order” to the settling party. The complainant is, of course, free to approach any data controller regarding which the complainant can exercise their rights under the provisions of the legislation.

44. Fourthly, the complainant requests that an administrative fine be imposed through the settlement “in accordance with Article 83(1) GDPR.”

•

The Dispute Chamber rejects this request for the following reason. The imposition of an administrative fine is a power that can be exercised by the Dispute Chamber under Article 100, §1, 13° WOG. In this sense, no administrative fine as intended by the complainant can be imposed at this stage prior to the substantive examination under Article 95 WOG. It is correct that Article 107 WOG indicates that the legislator intended that with settlements—without clarifying whether this can indeed also occur under Article 95 WOG—monetary amounts could also be collected, but this is not a requirement for the instrument of settlement, as already stated by the Dispute Chamber in the settlement proposal. The settlement aims to reach a general solution for the grievances of the complainant without the need for punitive measures. The Dispute Chamber emphasizes the efficient course of the proceedings in this regard.

45. Fifthly, the complainant requests that the settlement decision “will include that the defendant [settling party] waives any civil and other claims related to the settlement, for example but not limited to cases of negative reporting regarding the settlement.”

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The Dispute Chamber rejects this request for the following reason. This does not constitute an essential request in light of the grievances of the complainant as formulated in their complaint.

46. Sixthly, the complainant requests that the settlement decision be published on the website of the Data Protection Authority.

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The Dispute Chamber can grant this request, through Section III of this decision.

III. Publication of the decision

47.

Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority. The name and personal data of the complainant will be omitted, as they are not relevant for transparency regarding the settlement procedure.

48. However, the Dispute Chamber chooses to publish the names of the representative of the complainant and the settling party. It is indeed in the public interest that citizens can be informed, in the most transparent manner, about settlement procedures that lead to (visual) interventions on frequently visited websites such as the disputed website. By definition, the journalistic publications on this disputed website target a broad audience, and visitors to such a website have an interest in being informed about data protection-related aspects. Furthermore, the Dispute Chamber points out that the representative of the complainant has themselves publicized the complaint.

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Pursuant to Article 108, § 1 of the WOG, an appeal against this decision can be lodged with the Market Court (Court of Appeal Brussels) within a period of thirty days from the notification, with the Data Protection Authority as the defendant. Such an appeal can be filed by means of a statement of opposition that must contain the details listed in Article 1034ter of the Code of Civil Procedure. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Code of Civil Procedure, or via the e-Deposit IT system of Justice (Article 32ter of the Code of Civil Procedure).

(get.) Hielke HIJMANS

Chairman of the Disputes Chamber

7 The statement must include, under penalty of nullity:

1° the day, month, and year;

2° the name, first name, residence of the applicant and, if applicable, their capacity and their national register or company number;

3° the name, first name, residence and, if applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the claim;

5° the judge before whom the claim is brought;

6° the signature of the applicant or their lawyer.

8 The statement with its annex must be sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or deposited at the registry.

FOR THESE REASONS,

the Disputes Chamber of the Data Protection Authority decides

- to validate the settlement as accepted by the settling party on December 1, 2023, under the condition laid down and clarified in the present decision and framed in its annex.

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Annex – settlement proposal

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Your reference

Our reference

Attachment(s)

Date

NOYB: C-062-09

DOS-2020-03280

20/10/2023

Subject: application of Article 95, § 1, 2° WOG – settlement proposal in the case file with complaint from Mr. X regarding cookies at VRT (Website VRT.be)

Dear Sir/Madam,

The Disputes Chamber first refers to the letter that it previously sent to the defendant and the complainant, notifying them that the Disputes Chamber intended to send a settlement proposal to the parties in the present file. This document contains this settlement proposal. In the context of a large number of cases pending before the Disputes Chamber, resulting in long processing times for all cases, the Disputes Chamber, pursuant to Article 95

9 Letter sent by registered mail on September 21, 2023.

Disputes Chamber

By registered mail and by email:

To the attention of the Flemish Radio and Television Broadcasting Organization (VRT)

Via the postal address: [...]

Represented by Mr. Jan CLINCK and Mr. Gerrit VANDENDRIESSCHE

Both practicing at [...]

Via the email addresses: [...]

Defendant

By email:

To the attention of NOYB - European Center for Digital Rights, representative of Mr. X (“complainant”)

Via the email address: [...]

Complainant

Secretariat

T: +32 (0)2 274 48 56

Email: litigationchamber@apd-gba.be

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§ 1, 2° of the Act Establishing the Data Protection Authority (“WOG”)¹⁰ has decided to propose a settlement in the aforementioned case through this letter (“settlement proposal”). The Dispute Chamber also takes into account the fact that a large number of complaints regarding cookies are currently under consideration. Although the theme of “cookies” is among the priorities¹¹ of the Data Protection Authority, the Dispute Chamber must carefully choose the handling of its cases so that it can address various socially relevant (complaint) cases with the necessary urgency. The Belgian legislator has emphasized the need for the Dispute Chamber to act selectively in order to ensure effective enforcement.¹²

This settlement proposal is made without any detrimental acknowledgment and does not bind the Dispute Chamber in any way regarding a potential position on the refusal of the settlement proposal. The Dispute Chamber specifically refers to its powers to determine whether or not violations have occurred and, if necessary, to make use of the sanctioning powers granted to it under European¹³ and Belgian¹⁴ law. In this case, it is within the possibilities of the Dispute Chamber to continue the case – in the event of a refusal or when the Dispute Chamber withdraws the settlement proposal – in another manner.

If the party to whom the settlement proposal is addressed explicitly refuses the proposal, the Dispute Chamber will continue the case.

a) Procedural positioning of the settlement proposal and the settlement

The settlement proposal currently before us is in the “procedure prior to the substantive decision” as

provided by the legislator at the Dispute Chamber.¹⁵ The Dispute Chamber does not take a position here and now regarding the necessity of any

10 B.S. January 10, 2018.

11 See the press release from the Data Protection Authority regarding this, available at: <https://www.gegevensbeschermingsautoriteit.be/burger/de-gba-stelt-haar-prioriteiten-voor-het-jaar-2023-vast>.

12 Belgian House of Representatives, Explanatory Memorandum to the Draft Law for the Establishment of the Data Protection Authority, Doc. 2648/001 (Legislative Period 54), available at: <https://www.dekamer.be/kvvcr/showpage.cfm?section=/flwb&language;=nl&cfm;=/site/wwwcfm/flwb/flwb.n.cfm?lang=N&legislat;=54&dossierID;=2648,51>; see also: E. Degraeve, "Title 11. Control Authority" in C. DE TERWANGNE and K. ROSIER, *The Regulation on the Protection of Data (GDPR)* – 1st edition, Larcier, 2018, (593)607: "[The control authority] can thus exercise its control missions and assess the follow-up to be given to any complaints that are addressed."

13 See Article 58 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

14 See Article 100 WOG.

15 See section 6.3.2. and Articles 94-97 of the WOG.

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investigative measures¹⁶ by the Inspection Service, or the necessity to continue the file (subsequently) in accordance with the provisions of Article 95 WOG.

Since the procedure for the Dispute Chamber of the Data Protection Authority cannot be equated with the criminal procedure, "the settlement" as provided by the Belgian legislator under Article 95 §1 2° WOG cannot be equated with the "amicable settlement" from criminal law.¹⁷ The settlement in the sense of the WOG indeed has a sui generis character.

Furthermore, the Dispute Chamber specifies the precise facts framed in time and space that give rise to the settlement proposal (*infra*). Although the Dispute Chamber, as previously mentioned, does not make a ruling on the existence of infringements at this moment, it must rely on the elements present in the file to proceed with the settlement proposal. This concerns the elements that the complainant experienced as harmful. Additionally, the Dispute Chamber particularly takes into account other elements that were presented by the respondent in a letter dated October 2, 2023. The settlement proposal thus relates to specific facts within a certain timeframe and within a certain (technical) context, whereby facts that exceed this timeframe and context do not fall under the scope of the settlement. The disputed period only concerns that between the date of filing the complaint and the date of the formal settlement decision that follows this settlement proposal.

In general, the Dispute Chamber frames the settlement procedurally as follows:

1.

The settlement under the WOG is a settlement between:

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On the one hand, the Dispute Chamber which commits to terminate the procedure, whereby it refrains from potentially imposing corrective measures,

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and on the other hand, the defending party which commits to pay a sum of money and/or comply with certain conditions.

2. The settlement essentially implies an acknowledgment of the facts by the settling party, but does not constitute an acknowledgment of a violation of the applicable legislation.

16 Cf. Article 94, 1° and 2° WOG; also compare the mention in the notification dated 21/09/2023 to the parties: "This notification interrupts the period as intended in Article 96, §1 WOG of 30 days for the Inspection Service until the moment that the Dispute Chamber establishes that the settlement proposal does not lead or cannot lead to an actual settlement."

17 See in particular Articles 216bis and 216ter of the Code of Criminal Procedure regarding the extinguishing of public prosecution concerning certain infringements by fulfilling certain conditions such as paying a sum of money, as well as agreeing to and implementing certain measures; A. RIGLOLET, *Contrat de transaction*, Larcier, Brussels, 2021; A. RAES, T. VAN WYNSBERGE, S. DE KEULENAER, E. DEVEUX, K. DECRAMER, A. DELADRIERE, “The expanded amicable settlement: a ‘value-added’ or ‘win-win’ situation? Evaluation of the practice.”, *Panopticon*, no. 36(2), 2015, (88); M. FERNANDEZ-BERTIER and N. VAN DER ECKEN, “The expanded criminal transaction declared unconstitutional: towards a motivation of the transaction and sufficient and effective judicial control”, *Droit Pénal de l’Entreprise*, 2016, no. 3, (213)213.

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3. The scope of the settlement is in all cases limited to the facts and the timeframe explicitly mentioned in the settlement proposal, respectively the settlement.

4. The complainant is heard in the establishment of any settlement following a complaint.¹⁸ The complainant is heard regarding their views on both the use of the settlement instrument in this case and the content of the settlement proposal. The complainant has the opportunity to express their position regarding the proposed settlement, no later than 14 days after receiving the settlement proposal. This period does not preclude either party from obtaining clarification regarding the settlement proposal in written or oral form (*infra*).

5. A settlement is formalized through a settlement decision, in which the course of the procedure prior to the settlement is transparently outlined, and in which the conditions from the settlement proposal and the ultimately agreed settlement conditions are explicitly reiterated (in principle by referring to the settlement proposal, attached as an annex to the settlement decision).

6. All involved parties retain the right to, in principle, make written comments on the settlement proposal and its content.

7. A rejected or otherwise unsuccessful settlement does not affect the continuation of the file and has no impact on any alternative handling of the file.

b) Substantive conditions of the settlement proposal

b.1.) VRT (www.vrt.be)

b.1.1) first grievance of the first complainant in their complaint dated July 18, 2023

First grievance of the complainant in their complaint dated July 18, 2023:

“Violation type 1: No ‘refuse’ option at the first information level of the consent banner.” To substantiate this grievance, the complainant attaches the following two screenshots in the annex:

1. Complaint, annex 2

¹⁸ In light of Article 77 of the General Data Protection Regulation, the complainant has a broader role than in settlement procedures with other regulators, see e.g. the mere notification to the complaining party in the settlement procedure at the Belgian Competition Authority, cf. Article IV.59 in fine of the Economic Law Code of 28/02/2013 (B.S. 29/03/2013).

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As previously indicated in this settlement proposal, the respondent stated on October 2, 2023, that the “cookie banner,” as presented in the preceding screenshot in the complaint, is no longer displayed to the visitor of the website as such.

The respondent provides the following screenshot in her aforementioned letter, showing the situation on the website at that time when the “cookie banner” appears:

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Now that the Dispute Resolution Chamber takes into account all elements in the administrative file for this settlement proposal, this element is fully included.

Since the mere absence of a ‘reject’ option constitutes the only clearly articulated grievance of the complainant, and this situation has been clearly remedied by the respondent, it is no longer desirable to include the specifically articulated grievance in the settlement proposal.

Nevertheless, it should be noted that the complainant also generally refers to “misleading cookie banners and ‘dark patterns’” in section 3 of the complaint. In this regard, the Dispute Resolution Chamber, solely based on the documents in the file, notes that the color in the current – at least at the time the respondent addressed the Dispute Resolution Chamber – situation in the “cookie banner” on the disputed website still seems to indicate a current issue.

Prima facie relevant elements from policy positions and documents of the Data Protection Authority.

1. The “cookie checklist” of the Belgian Data Protection Authority

I do not use techniques that can be classified as “deceptive design” (e.g., nudging through color use)

2. The positions of the “Cookie Banner Taskforce” of the European Data Protection Board and the press release from the Data Protection Authority.

An excerpt from that press release and from the Taskforce report of January 17, 2023, respectively:

Misleading design. The taskforce draws attention to various types of misleading practices regarding the design of banners.

To assess the conformity of a banner, it must be checked on a case-by-case basis whether the contrast and colors used are not clearly misleading for the users and do not lead to unintended and thus invalid consent from the users. Consequently, it was also agreed that a case-by-case analysis is necessary to address specific cases, although some examples of features that are manifestly contrary to the provisions of the e-Privacy Directive have been identified.

In the annex to this settlement proposal, you will find a copy of this “cookie checklist”; this checklist is provided confidentially until it is published on the website of the Data Protection Authority.

See also our earlier press release: <https://www.gegevensbeschermingsautoriteit.be/burger/nieuws/2023/02/24/deceptive-design-patterns-how-to-recognize-and-avoid-them>

Original text in English: In order to assess the conformity of a banner, a case-by-case verification must be carried out in order to check that the contrast and colours used are not obviously misleading for the users and do not result in an unintended and, as such, invalid consent from them. As a result, it was also agreed that a case-by-case analysis would be necessary to address specific cases, although some examples of features manifestly contrary to the e-Privacy Directive provisions have been identified.

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Proposal condition one settlement proposal:

The respondent commits to ensuring that the option where a “reject all” option – following the potential acceptance of condition 1 of the present settlement proposal – is not represented as less (visually) attractive than the partial or full acceptance for the placement of non-strictly necessary cookies, and this within one month after the settlement decision.

The technical adjustments that the respondent makes in this regard will be documented in a clear document at the time of implementation and forwarded to the Dispute Chamber and the complainant. Both the execution of the technical implementation and the drafting and forwarding of the document that reflects the implementation will be completed within the month following the settlement decision.

c) Written and oral exchanges with parties

c.1.: written exchanges

The settlement proposal serves as the starting point for the settlement procedure. However, the conditions of this proposal can be clarified or otherwise adjusted during the further course of the settlement procedure, especially in cases where such adjustments bring improvements in light of data protection legislation.

Such requests do not entail an automatic extension of the deadline.

The parties shall, in principle, contact the Dispute Chamber in writing when they deem it useful to make certain adjustments to the conditions of the settlement proposal. It is up to the Dispute Chamber to make an adjustment to the settlement proposal based on this communication from the parties.

In this regard, a constructive attitude from the parties is encouraged. The Dispute Chamber expects that requests are made in a reasonable and proportional manner. When the requests, in the view of the Dispute Chamber, indicate that a settlement is unlikely, this may lead to the withdrawal of the settlement proposal.

c.2. oral exchanges

Both parties may submit a request for an oral explanation regarding the settlement proposal or later communications to the Dispute Chamber, whereby it is up to the Dispute Chamber to assess the relevance of such oral exchanges.²²

It goes without saying that this is a favor and that the Dispute Chamber offers this solely for the sake of an efficient process.

A record will be drawn up that, in principle, only documents the occurrence of the oral explanation moment.

Both parties are free to participate in oral explanation moments organized by the Dispute Chamber. The discussions are confidential. No information regarding the content of the discussions may be disclosed to third parties.

d) Deadline

VRT must respond within 30 days of receiving the present settlement proposal. The (representative of the) complainant may take a position regarding the initial settlement proposal and the underlying conditions within 14 days of receiving this letter.

e) The existence of other data controllers and/or processors

This settlement proposal is directed solely at VRT. It does not take a position on whether and to what extent there are other actors responsible for the potential infringements that led to the present settlement proposal.

f)

Validation of the settlement

When the settlement proposal becomes a formal settlement decision through explicit acceptance by the party to whom the settlement proposal is directed within the aforementioned deadline, an appeal may be lodged against this by any “aggrieved party.”²³

22 “settlement discussions” are a recognized legal practice within the regulatory landscape, particularly compare the procedure at the Belgian Competition Authority in articles IV.55 et seq. (“Subsection 4 – Settlement Procedure”) of the Economic Law Code of 28/02/2013 (B.S. 29/03/2013) and the mention of such settlement discussions therein.

23 Under Article 108, § 1 of the WOG, an appeal may be lodged against this decision within a period of thirty days from the notification to the Market Court (Court of Appeal Brussels), with the Data Protection Authority as the respondent.

Such an appeal can be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Judicial Code. The statement of opposition must be submitted to the registry of the Market Court in accordance with Article 1034quinquies of the Ger.W., or via the e-Deposit IT system of Justice (Article 32ter of the Ger.W.).

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The final settlement does not affect the right of any individuals [ERRATUM] who have suffered damage to claim compensation before a civil court based on, among other things, Article 82 GDPR.

g) Appeal against the settlement proposal

Pursuant to Article 108, § 1 of the WOG, an appeal against this decision to make a settlement proposal can be lodged within a period of thirty days from the notification of this decision with the Markets Court (Court of Appeal Brussels), with the Data Protection Authority as the defendant.

Such an appeal can be lodged by means of a contradictory petition that must contain the mentions listed in Article 1034ter of the Code of Civil Procedure. The contradictory petition must be submitted to

the registry of the Markets Court in accordance with Article 1034quinquies of the Code of Civil Procedure, or via the e-Deposit information system of Justice (Article 32ter of the Code of Civil Procedure).

Yours sincerely,

Hielke Hijmans
Chairman of the Disputes Chamber

24 The petition must state, under penalty of nullity:

7° the day, month, and year;

8° the name, first name, residence of the petitioner and, if applicable, their capacity and their national register or business number;

9° the name, first name, residence and, if applicable, the capacity of the person to be summoned;

10° the subject and a brief summary of the grounds of the claim;

11° the judge before whom the claim is brought;

12° the signature of the petitioner or their lawyer.

25 The petition with its annex is to be sent, in as many copies as there are parties involved, by registered letter to the clerk of the court or filed at the registry.